

[1 EDW. 8. & Walsall Corporation (Trolley
1 GEO. 6.] Vehicles) Order [Ch. lxi.]
Confirmation Act, 1937.



CHAPTER lxi.

An Act to confirm a Provisional Order made by the Minister of Transport under the Walsall Corporation Act 1925 relating to Walsall trolley vehicles. A.D. 1937.
[6th July 1937.]

WHEREAS under the authority of section seventeen of the Walsall Corporation Act 1925 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 15 & 16 Geo. 5. c. cxxii.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act. Confirmation of Order in schedule.

2. This Act may be cited as the Walsall Corporation (Trolley Vehicles) Order Confirmation Act 1937. Short title.

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SCHEDULE.

WALSALL CORPORATION (TROLLEY VEHICLES).

Order authorising the mayor aldermen and burgesses of the borough of Walsall to use trolley vehicles upon additional routes in the borough of Walsall and the urban district of Darlaston.

Short and collective titles.

1.—(1) This Order may be cited as the Walsall Corporation (Trolley Vehicles) Order 1937.

(2) The Walsall Corporation Act 1914 the Walsall Corporation Act 1919 the Walsall Corporation Act 1925 and this Order may be cited together as the Walsall Corporation (Trolley Vehicles) Acts and Order 1914 to 1937.

Interpretation.

2. In this Order the following expressions have the meanings hereby assigned to them respectively (that is to say) :—

“ The borough ” means the borough of Walsall ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

4 & 5 Geo. 5.
c. clx.
15 & 16
Geo. 5.
c. cxxii.

“ The Act of 1914 ” and “ the Act of 1925 ” mean respectively the Walsall Corporation Act 1914 and the Walsall Corporation Act 1925 ;

“ Trolley vehicle ” has the meaning assigned to it by section 4 (Interpretation) of the Act of 1925 ;

“ The Minister ” means the Minister of Transport.

Power to use trolley vehicles upon certain routes.

3. Subject to the provisions of this Order and of the Act of 1925 (except so much of section 9 of that Act as applies section 22 of the Act of 1914 to the provision maintenance and running of trolley vehicles) so far as such provisions relate to trolley vehicles and trolley vehicle routes and are applicable to this Order the Corporation may use trolley vehicles upon the following routes in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say) :—

Route No. 1 (4·5 chains or thereabouts in length to be situate wholly in the borough) commencing at the junction of Townend Street with Wolverhampton Street proceeding along Townend Street across Green Lane and across Stafford Street as and when altered and improved to and terminating at the junction of that street with Wisemore ;

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Route No. 2 (1 furlong 4·2 chains or thereabouts in length to be situate wholly in the borough) commencing at the termination of Route No. 1 hereinbefore described at the junction of Wisemore with Stafford Street proceeding along Wisemore and St. Paul's Street to the junction of that street with Darwall Street; A.D. 1937.

Route No. 2A (4·7 chains or thereabouts in length to be situate wholly in the borough) commencing at the Clock Tower on The Bridge proceeding along The Bridge and Bradford Street to the junction of that street with the most northern point of Bradford Place;

Route No. 3 (1 mile 5 furlongs 3·9 chains or thereabouts in length to be situate in the borough and the urban district of Darlaston) commencing in Wednesbury Road at the junction thereof with Corporation Street East proceeding in a southerly direction along Wednesbury Road and Darlaston Road to and terminating in the last-mentioned road at its junction with Park Lane;

Route No. 4 (4 furlongs 4·5 chains or thereabouts in length to be situate wholly in the borough) commencing by a junction with Route No. 3 hereinbefore described at the junction of Bescot Road with Wednesbury Road proceeding along Bescot Road to and terminating in that road at its junction with the boundary of the borough:

Provided that—

- (a) before equipping any trolley vehicle route to include a turning point or arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister for approval and in the case of a turning point outside the borough shall also submit a copy of such plans to the chief officer of police of the police district in which the turning point is proposed to be situate and to the local and road authorities and before approving any such plans the Minister shall give to the chief officer of police and to the local and road authorities an opportunity of making representations with reference thereto and shall consider any such representations which may be made to him;
- (b) no turning point shall be fixed upon any street or road belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld;
- (c) any question as to whether or not the consent of any railway company under proviso (b) of this section has been unreasonably withheld shall be determined by the Minister;

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(d) subsection (2) (d) of section 38 (For protection of Postmaster-General) of the Act of 1914 shall be read and have effect as if the words "generated or used by or supplied to" were inserted in that subsection in substitution for the words "generated by."

Period for completion of trolley vehicle equipment.

4. If the Corporation shall not have commenced to use trolley vehicles upon each of the routes authorised by this Order within five years from the passing of the Act confirming this Order or such extended time as the Minister may upon the application of the Corporation allow the powers conferred by this Order shall so far as they relate to the use of trolley vehicles upon any route upon which the Corporation shall not have commenced to use trolley vehicles cease to be exerciseable.

For protection of Darlaston Urban District Council.

5. For the protection of the Darlaston Urban District Council (in this section referred to as "the council") the following provisions shall apply and have effect unless otherwise agreed between the Corporation and the council (that is to say) :—

(1) The council shall be entitled to reinstate any streets or roads vested in or repairable by the council which may be opened or broken up or interfered with by the Corporation in connection with the construction and provision of the trolley vehicle equipment for Route No. 3 authorised by this Order and the placing and maintenance of mains cables wires and other apparatus and equipment therefor and to maintain and keep in good repair the portion of any street or road which may be so opened or broken up or interfered with for six months after replacing and making good the same. The reasonable cost of such reinstating maintenance and keeping in good repair shall be agreed between the Corporation and the council or failing agreement shall be determined in manner provided by subsection (8) of this section and the cost so agreed or determined shall be paid by the Corporation to the council :

(2) Upon the commencement of a service of trolley vehicles on the part of Route No. 3 authorised by this Order in the urban district of Darlaston (in this section called "the district") the Corporation shall discontinue the use of petrol driven omnibuses on the said part of the said route except—

(a) in cases of emergency ;

(b) at periods when the trolley vehicle system is insufficient or unable suitably to deal adequately with the requirements of the public for transport ;

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(c) in so far as the said part of the said route may form part of any petrol omnibus route of the Corporation; or A.D. 1937.

(d) for any purpose other than regular stage carriage services :

(3) No less frequent services of trolley vehicles shall be given on the said part of the said Route No. 3 than is at the date of the confirmation of this Order provided by means of omnibuses :

(4) (a) In the application of section 32 (Cheap fares for labouring classes) of the Walsall Corporation Act 1900 to the district the words “ (the Corporation nevertheless not being required to take any fare less than one penny) ” shall be deemed to be omitted therefrom; 63 & 64 Vict. c. cclxxxvii.

(b) The fares charged by the Corporation in respect of trolley vehicles run on the said part of the said Route No. 3 (other than the fares referred to in paragraph (a) of this subsection) shall not at any time be higher than those charged by the Corporation in respect of services of petrol driven omnibuses immediately prior to the commencement of the service of trolley vehicles upon the said part of the said Route No. 3 and the fares so charged in respect of such trolley vehicles shall from time to time be reduced so as not to exceed those for the time being charged in respect of any similar service of petrol driven omnibuses or trolley vehicles provided by the Corporation :

(5) The Corporation shall fit to all trolley vehicles operating in the district apparatus of the most modern and efficient type and design for the purpose of eliminating interference with wireless transmission and reception :

(6) All trolley vehicle apparatus placed or laid on in under or over any street or road in the district shall be placed and laid in such position as the council may reasonably approve Provided that no condition of any such approval shall conflict with any requirement of the Minister Any question as to whether or not the council shall have been unreasonable in withholding any approval or shall have attached an unreasonable condition to any such approval shall be determined under subsection (8) of this section :

(7) The council shall be entitled to attach electric lamps for street lighting and the necessary wires and apparatus in connection therewith (in this subsection referred to as “ attachments ”) to any post pole or standard erected

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by the Corporation under the powers of this Order in the district subject to the following conditions (that is to say) :—

(a) The council shall give to the Corporation fourteen days' notice of the intention to make an attachment specifying the nature thereof and in making such attachment shall comply with such reasonable conditions as the Corporation may impose ;

(b) The council shall bear the cost of any extra insulation and equipment which may be required by reason of the attachments but such cost shall not exceed five shillings in respect of each post pole or standard unless otherwise agreed or determined by arbitration under subsection (8) of this section ;

(c) In attaching or maintaining any attachment no obstruction shall be caused to the traffic along or the working or user of the trolley vehicle routes or the user of any trolley vehicle post pole standard or apparatus and the council shall if reasonably required so to do by the Corporation remove temporarily or permanently any such attachment All posts poles and standards shall be under the entire control of the Corporation ;

(d) The Corporation shall not be liable for any damage done to an attachment and the council shall make good to the Corporation and shall indemnify them against any claim loss damage or expense (other than that referred to in paragraph (b) of this subsection) which may be incurred by the Corporation in consequence of the exercise by the council of the powers of this subsection :

(8) Any question or dispute which may arise between the Corporation and the council under the provisions of this section shall be referred to and determined by an arbitrator to be appointed by the President of the Institute of Civil Engineers and the provisions of the Arbitration Acts 1889 to 1934 shall apply for the purposes of the determination of such question or dispute.

Borrowing
powers.

23 & 24

Geo. 5. c. 51.

6.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all money so borrowed within such periods as the Corporation may determine not

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exceeding those respectively mentioned in the third column of A.D. 1937.
the said table (namely):—

1	2	3
Purpose.	Amount.	Period for repayment calculated (except where otherwise stated) from the date or dates of borrowing.
(a) The provision of trolley vehicles.	£ 16,800	Ten years.
(b) The provision of electrical equipment and the con- struction of other works necessary for working trolley vehicles.	9,000	Twenty years.
(c) The payment of the costs charges and expenses of this Order.	The sum requisite.	Five years from the confirma- tion of this Order.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Order shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) In the application of the said provisions of the Local Government Act 1933 to the borrowing of any further money for the purposes of this Order the Minister shall be the sanctioning authority.

7. All regulations and byelaws relating to the trolley vehicles authorised by the Act of 1914 and the Act of 1925 and made in pursuance of those Acts or either of them or any other statutory enactment shall with any necessary modifications apply to the trolley vehicles used by the Corporation in pursuance of this Order. Applica-
tion of
byelaws.

8. The provisions of section 250 (Procedure &c. for making byelaws) of the Local Government Act 1933 shall not apply in respect of byelaws to be made in pursuance of this Order under section 46 (Byelaws by local authority Promoters may make certain regulations) of the Tramways Act 1870 or section 18 (Power to reserve cars for special purposes) of the Act of 1925. Procedure
for making
byelaws.

33 & 34 Vict.
c. 78.

9. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon Inquiries by
Minister.

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10. All costs charges and expenses of and incidental to the preparing and obtaining and confirming of this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

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